

Digital Sovereignty in the Italian Public Administration

National Digital Sovereignty Observatory — June 2025

The problem

The Italian Public Administration depends to a significant extent on digital infrastructure operated by providers subject to non-European jurisdictions. This dependence exposes institutional communications and citizens' data to concrete risks of access by foreign authorities, in particular through the United States CLOUD Act (2018), and stands in potential conflict with the GDPR and the rulings of the Court of Justice of the EU (Schrems I and II). In particular, arts. 48 and 115 of the GDPR prohibit giving effect to orders from non-EU authorities not grounded in international agreements: jurisdiction is determined by the provider's nationality, not the physical location of the data.

MICROSOFT'S OWN ADMISSION

“No, I cannot guarantee it.”

Microsoft France's Director of Public and Legal Affairs, asked at a hearing whether he could guarantee that European citizens' data would never be transferred to the US government under a CLOUD Act order — without the national authorities' agreement. Microsoft itself admits it cannot rule out the transfer of European data to US authorities.

Anton Carniaux, Director of Public and Legal Affairs, Microsoft France — hearing before the French Senate committee of inquiry, 10 June 2025. Sources: French Senate (senat.fr) · heise.de

The numbers

- ~23,000 PA bodies monitored (source: IndicePA)
- Email services are the first area analysed
- The mapping covers all registered institutional domains
- Data is collected and updated through automated analysis of MX records
- The dataset is open, verifiable and released under the CC BY-SA 4.0 licence

The regulatory context

The European and Italian regulatory framework imposes precise obligations on the localisation and protection of PA data:

Rule	Relevance
GDPR (EU Reg. 2016/679)	Prohibits data transfers to third countries without adequate safeguards
Schrems II (CJEU, 2020)	Invalidated the EU-US Privacy Shield
CLOUD Act (USA, 2018)	Allows US access to data held by American providers even within the EU
Italy's Cloud Strategy (2021)	Classifies PA data and provides for migration to qualified infrastructure
NIS2 (EU Dir. 2022/2555)	Cybersecurity requirements for the PA and essential entities

Recommendations

1. Mandatory census of the PA's digital services

Make it mandatory for every body to declare the digital services it uses and their jurisdiction. Integrate this information into IndicePA to make it public and monitorable.

2. Sovereignty requirements in Consip framework agreements

Introduce digital sovereignty criteria (data jurisdiction, server localisation, absence of obligations towards non-EU authorities) into framework agreements for email and cloud services.

3. National migration plan

Define a plan with progressive deadlines for migrating the PA's email services to compliant providers. Provide dedicated funding from the PNRR or from cybersecurity budgets.

4. Continuous and transparent monitoring

Institutionalise the monitoring of the PA's digital sovereignty with public data updated periodically.

5. Promotion of the model at European level

Propose, in European fora, the adoption of a common framework for monitoring the digital sovereignty of public administrations across all member states.

What you can do

If you are a member of parliament: Table a parliamentary question citing the Observatory's data. Propose the inclusion of sovereignty requirements in legislation.

If you are a PA manager: Check your body's position and launch an internal assessment on migration.

If you are a regulator: Use the data to update the guidelines and introduce requirements into framework agreements.

Sources and references

- National Digital Sovereignty Observatory: <https://osservatorio.mxmap.it/>
- MxMap.it — Mapping of PA email providers: <https://mxmap.it/>
- IndicePA — Index of Public Administrations: <https://indicepa.gov.it>
- GDPR: EU Regulation 2016/679
- Schrems II ruling: CJEU C-311/18

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